

no allegations that Qiu was intoxicated or somehow impaired, or that he was even *driving* (as he was parked on the side of the public roadway.) Reading the SAC as a whole, in context with all of the factual allegations, nothing more than negligence has been alleged.

Summary:

Grant the motion to strike punitive damages *without* leave to amend.

5.

CASE #	CASE NAME	HEARING NAME
CVRI2602054	DURAN vs KIA AMERICA, INC.	MOTION FOR PROTECTIVE ORDER

Tentative Ruling:

Moving party: Defendant Kia America, Inc.
Responding party: Plaintiffs Heather Duran and Juan Guzman Vazquez

This is a lemon law action. On August 4, 2025, Plaintiffs Heather Duran and Juan Guzman Vazquez (collectively, “Plaintiffs”) purchased a 2025 Kia EV6 (the “Vehicle”). (Compl. ¶ 6.) The Vehicle was delivered to Plaintiffs with serious defects and nonconformities to warranty and developed other serious defects and nonconformities to warranty including, but not limited to, defects relating to the Powertrain, including the Transmission and the Axle systems. (*Id.* at ¶ 9.)

On April 2, 2026, Plaintiffs filed their Complaint against Defendant Kia America, Inc. (“Kia”), asserting three causes of action under the Song-Beverly Act: (1) breach of express warranty; (2) breach of implied warranty; and (3) violation of section 1793.2(b).

This case is governed by the Song-Beverly Act disclosure framework enacted in 2024 and operative as of January 1, 2025. CCP §§ 871.20 et seq. establish expedited procedures for lemon law actions. Central to this framework is section 871.26, which mandates automatic initial disclosures within sixty days of the answer. Subdivision (b) provides:

Within 60 days after the filing of the answer or other responsive pleading, all parties shall, without awaiting a discovery request, provide to all other parties an initial disclosure and documents as described in this section.

(CCP § 871.26(b).) Subdivision (h) enumerates 17 categories of documents the manufacturer must produce, including two categories at the heart of Kia’s motion:

(12) Warranty policies and procedure manuals.

[and]

(15) If a pre-suit restitution or replacement request is made, the manufacturer's written statement of policies and procedures used to evaluate customer requests for restitution or replacement pursuant to Lemon Law claims.

(CCP §§ 871.26(h)(12), (15).)

Kia moves for a protective order over materials it treats as confidential, including its internal warranty and pricing data, Consumer Assistance Center Case Report, Techline Assistance Case Center Report and Service Policies and Procedures. Kia asserts that the public dissemination of such documents would harm Kia in the marketplace. Kia contends that good cause exists to grant its motion under CCP § 2031.060(b)(5), that the materials qualify for protection under Evid. Code §§ 1060–1063 and Civ. Code § 3426.1(d), and that CCP § 871.26 does not override longstanding law governing confidential documents. Kia notes that Plaintiffs' counsel stipulated to a similar LASC-model order as recently as October 2025 in an AB 1755 case. Kia represents that it is willing to produce these documents but only pursuant to, or subject to an appropriate protective order, and that its proposed order is targeted and non-prejudicial, while Kia will be irreparably harmed without protection.

Plaintiffs oppose the motion, framing the motion as an attempt to circumvent this legislative mandate by withholding these mandatory disclosures until Plaintiffs sign a protective order. Because the statutory disclosure requirements under section 871.26 are explicit mandates that do not condition compliance on the execution of a protective order and the statutory scheme only applies to those manufacturers who have “opted in” voluntarily, which Kia has chosen to do, Plaintiffs argue Kia is bound by its disclosure obligations and that allowing Kia to withhold these documents acts as a unilateral stay of discovery, violating the express text and intent of the statute.

On the merits, Plaintiffs argue that Kia has not shown good cause, contending that the supporting declaration contains only generic, conclusory allegations without any specific facts and that Kia produces these very documents in lemon law litigation routinely throughout California, disclosing them to opposing counsel, retained experts, mediators, and court personnel in hundreds of cases—a concession they argue is fatal to any trade-secret claim. Plaintiffs request outright denial, or, if any protection is warranted, a narrowly tailored order while still requiring production of all section 871.26 materials.

In reply, Kia argues that nothing in AB 1755, or in section 871.26, eliminates this Court's longstanding authority to issue protective orders governing confidential commercial information, and that it timely served initial disclosures on Plaintiffs, indicating that it would produce the confidential and proprietary documents subject to the entry of a protective order, as Kia does in each lemon law action filed against it. Kia contends that Plaintiffs invoke the wrong standard because section 2031.060(b) authorizes protective orders whenever disclosure of confidential commercial information would cause harm or is otherwise inappropriate and does not require a showing of trade-secret status, and that the supporting declaration provides un rebutted fact-specific explanations of confidentiality and competitive harm. Finally, Kia argues that Plaintiffs fail to identify any actual prejudice from entry of a protective order because the

proposed order is the modified LASC Protective Order previously provided to Plaintiffs and does not limit Plaintiffs' ability to use the documents in discovery, at deposition, or at trial.

Analysis

CCP § 2031.060(b) authorizes protective orders in document production:

The court, for good cause shown, may make any order that justice requires to protect any party or other person from unwarranted annoyance, embarrassment, or oppression, or undue burden and expense. This protective order may include, but is not limited to, one or more of the following directions: . . . (5) That a trade secret or other confidential research, development, or commercial information not be disclosed, or be disclosed only to specified persons or only in a specified way.

A party seeking a protective order for trade secrets must satisfy the requirements of Evid. Code § 1061(b)(1), which requires an affidavit showing: (1) the affiant's qualifications to give an opinion concerning the trade secret in question; (2) identification of the trade secret without revealing its substance; and (3) evidence that the secret qualifies as a trade secret under Civ. Code § 3426.1(d).

Section 3426.1(d) defines a trade secret as: "information, including a formula, pattern, compilation, program, device, method, technique, or process, that: (1) Derives independent economic value, actual or potential, from not being generally known to the public or to other persons who can obtain economic value from its disclosure or use; and (2) Is the subject of efforts that are reasonable under the circumstances to maintain its secrecy." (Civ. Code § 3426.1(d).)

Here, Kia has met its burden. In the supporting declaration, Art Mendoza, Kia's litigation paralegal, declares under penalty of perjury that he has personal knowledge of the matters set forth in his declaration and could and would testify competently thereto. (Mendoza Decl. ¶ 1.) Mendoza attests that he is familiar with the internal practices employed by Kia with respect to the dissemination of documents and information of the type produced in responses to Requests for Production of Documents and depositions in the course of litigation. (*Id.* at ¶ 3.)

Mendoza identifies the categories of confidential materials without revealing their substance: Kia's internal warranty and pricing data, Kia's Consumer Assistance Center Case Report, Kia's Techline Assistance Case Center Report and Service Policies and Procedures are all proprietary and confidential, and the public dissemination of such documents would harm Kia in the marketplace. (*Id.* at ¶ 4.) He explains that Kia has incurred substantial expenditures of manpower and capital in creating its policies and procedures for the handling of customer contacts and that Kia treats the information contained in its internal warranty repairs and pricing data, Kia's Service Policies and Procedures Manual, Consumer Assistance Center Case Reports, and Techline Assistance Case Center Reports as confidential proprietary information, providing

limited access to this information to only certain individuals in a secure manner. (*Id.* at ¶ 5.)

As to competitive harm, Mendoza declares that the automotive industry is competitive, and the handling of consumer contact and warranty repairs is a central part of Kia's business model; that automobile distributors are in direct competition with each other in terms of sales, quality of service, and customer satisfaction; and that each of the documents in question allows Kia to compete in this competitive market. (*Id.* at ¶ 6.) More specifically, he attests that the warranty repair and pricing data shows the amount reimbursed to a Kia authorized service dealer for a specific repair; that these amounts are competitively sensitive, proprietary, and not shared in the automotive industry or between authorized service dealers; and that disseminating this confidential and proprietary information to the public would cause direct business harm to Kia. (*Id.* at ¶ 7.)

The Techline Assistance Center Case Reports, Mendoza declares, are generated by Kia as a written record of communications between Kia and its authorized service dealers and contain diagnosis, repair, or other matters involving a particular vehicle or model of vehicles. (*Id.* at ¶ 8.) The Techline Assistance Center Case Report, which contains Kia's specific technical processes, is considered proprietary and confidential to Kia. (*Id.*)

The Consumer Assistance Center Case Reports are generated by Kia as a written record of communications between a customer and Kia and are considered proprietary and confidential to Kia. (*Id.* at ¶ 9.) Kia does not voluntarily disclose or disseminate this information. (*Id.*)

Mendoza concludes that the documents and information discussed herein are deemed by Kia to be confidential information and the disclosure of such competitively sensitive information would result in commercial injury and harm to Kia's competitive position in the marketplace. (*Id.* at ¶ 10.)

This showing satisfies the statutory requirements. Mendoza has established his qualifications, identified each category of materials without revealing substance, described the efforts to maintain secrecy (restricted access to limited personnel in a secure manner), established independent economic value (competitive pricing structures, proprietary customer-engagement processes, technical diagnostic methodologies not shared in the industry), and demonstrated reasonable secrecy efforts. The declaration is fact-specific, not boilerplate, and addresses each Civ. Code § 3426.1(d) element.

Plaintiffs nonetheless argue that section 871.26's silence on protective orders demonstrates legislative intent to preclude them. The argument is without merit. Statutory silence does not negate the remainder of the Code of Civil Procedure. As the Ninth Circuit observed in a parallel context, when a statute is silent on an issue, courts must look to pre-existing statutes and regulations that might apply. (*Vitality Rehab., Inc. v. Sebelius* (C.D. Cal. 2009) 641 F.Supp.2d 984, 993–94 [citing *United States v. Wells* (1997) 519 U.S. 482, 495–96].) Kia invokes this principle persuasively: AB 1755

created an early disclosure framework but, in doing so, it did not repeal existing statutory protections or require manufacturers to publicly disseminate competitively sensitive internal documents.

Had the Legislature intended to strip manufacturers of all confidentiality protections for documents disclosed under section 871.26(h)(12) and (15), it would have said so expressly, particularly given the longstanding practice of protective orders in commercial litigation and the Legislature's awareness that these manuals and policies contain competitively sensitive information. The statute imposes disclosure, not unprotected public dissemination.

Kia does not seek to avoid production. It seeks to produce under the safeguard of a protective order. Kia has represented that it is willing to produce these documents but pursuant to an appropriate protective order. That approach can be reconciled with the statute's disclosure mandate while preserving the confidentiality protections that coexist with it. On the present record, Kia has made a sufficient showing of good cause, and entry of a protective order is appropriate. Accordingly, the motion is **GRANTED**.

Summary: GRANT Defendant Kia America Inc.'s Motion for Protective Order. Moving party to submit a protective order for the Court's signature.

6.

CASE #	CASE NAME	HEARING NAME
CVRI2602141	SHAWANDA R. OBEY, MD, MPH vs MAGELLA MEDICAL GROUP, INC.	ANTI-SLAPP MOTION (SPECIAL MOTION TO STRIKE)

Tentative Ruling:

Moving party: Defendant San Antonio Regional Hospital
Represented by: Cole Pedroza LLP

Responding party: Plaintiff Shawanda R. Obey, MD, MPH
Represented by: pro per

Plaintiff Shawanda R. Obey, M.D. ("Plaintiff") is an obstetrician-gynecologist ("OB/GYN"). She joined the medical staff at Riverside Health System, L.P. dba Riverside Community Hospital ("RCH") in 2002 and was employed by Pediatrix Medical Group, Inc. ("Pediatrix"). She contends that after she joined RCH, she received a telephone call about lawsuits she had filed against other hospitals and medical groups and was told that there were concerns about her being at RCH because of these lawsuits. Shortly after she started work, she complained about a toxic hospital culture. She contends that false and discriminatory statements that were harmful to her career were made while she was at RCH. She reported unsafe practices and conditions at RCH and was retaliated against while working at RCH. She was allegedly fired by Pediatrix and opened her own practice, while still retaining privileges at RCH and two other hospitals.